

The School of Planning and Architecture (Procedure of Meeting of Council and Payment of Allowances to Members) Rules, 2015

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The School of Planning and Architecture (Procedure of Meeting of Council and Payment of Allowances to Members) Rules, 2015

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The School of Planning and Architecture (Procedure of Meeting of Council and Payment of Allowances to Members) Rules, 2015

Rule

THE-SCHOOL-OF-PLANNING-AND-ARCHITECTURE-PROCEDURE-OF-MEETING-OF-COUNCIL-AND-PAYMENT-O
F-ALLOWANCES-TO-MEMBERS-RULES-2015 of 2015

Published on 27 January 2016

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The School of Planning and Architecture (Procedure of Meeting of Council and Payment of Allowances to Members) Rules, 2015

Published vide Notification No. G.S.R. 117(E), dated 27th January, 2016

Ministry of Human Resource Development

(Department of Higher Education)

G.S.R. 117(E). - In exercise of the powers conferred by sub-section (1) read with clauses (a) and (b) of sub-section (2) of section 37 of the School of Planning and Architecture Act, 2014 (37 of 2014), the Central Government hereby makes the following rules, namely:-

1.

Short title and Commencement.

(1)

These rules may be called the School of Planning and Architecture (Procedure of Meeting of Council and Payment of Allowances to Members) Rules, 2015.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definition.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" means the School of Planning and Architecture Act, 2014 (37 of 2014);

(b)

"Council" means the Council established under sub-section (1) of section 33 of the Act;

(c)

"Member Secretary" means the Member Secretary of the Council;

(2)

Words and expressions used in these rules but not defined and defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

The meetings and the manner of conducting business.

(1)

The Council shall meet as often as may be necessary to transact its business but at least once during a calendar year.

(2)

The meetings of the Council shall be convened by the Chairperson of the Council suo-moto or at the request of the Member Secretary or on a requisition signed by not less than ten members of the Council.

(3)

Half of the members of the Council shall form a quorum for a meeting of the Council.

(4)

The Member Secretary shall send a written notice of every meeting to every member at least fifteen days before the date of the meeting mentioning therein the place, date and time of the meeting:

Provided that the Chairperson may call a special meeting of the Council at short notice to consider urgent issues.

(5)

The notice of a meeting shall be delivered either by hand or sent by registered or speed post at the address of each member available in the office record of the Council and if so, sent, shall be deemed to be duly delivered at the time at which notice would be delivered in the ordinary course of post:

Provided that the notice may also be sent through facsimile, electronic mail or short message service.

(6)

The agenda for a meeting shall be circulated by the Member Secretary to the members at least seven days before a meeting.

(7)

The notices of motions for inclusion of any item in the agenda shall reach the Member Secretary at least three days before the meeting:

Provided that the Chairperson of the Council may, however, permit inclusion of any item for which due notice has not been received.

(8)

The decision of the Chairperson of the Council in regard to all questions of procedure shall be final.

(9)

The minutes of the proceedings of a meeting of the Council shall be recorded by the Member Secretary and circulated to all the members of the Council.

(10)

The minutes, together with any amendment, shall be placed for confirmation of the Council at its next meeting.

(11)

After the minutes are confirmed and signed by the Chairperson of the Council, they shall be recorded in a minute book which shall be kept open for inspection of the members of the Council at all times during the office hours and also the minutes shall be uploaded on the website of the Council within three days from the date it is recorded.

(12)

All questions considered at the meeting of the Council, shall be decided by a majority of the votes of the members present including the Chairperson of the Council:

Provided that if the votes are equally divided, the Chairperson of the Council shall have a second or casting vote.

4.

Travelling and other allowances.

(1)

The travelling allowances of the Members of the Council referred to in clauses (d) and (m) of sub-section (2) of section 33 of the Act shall be regulated as per the rules applicable to Group 'A' Officers of the equivalent Grade in the Government of India.

(2)

The members of the Council referred to in clause (b) of sub-section (2) of section 33 of the Act shall be entitled to such travelling and daily allowances as are admissible to them as Members of Parliament appointed to Committees and Commissions set up by the Government of India.

(3)

The Members of the Council referred to in clauses (a), (c), (e), (f), (g), (h), (i), (j), (k), (l), (n), (o) and (p) of sub-section (2) of section 33 of the Act shall be entitled to such travelling and daily allowances as are admissible to them under the rules of their employing bodies.

(4)

The Members shall claim their travelling and daily allowances from their respective organisations to which they belong.

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